PUBLIC SERVICE COMMISSION
OF WEST VIRGINIA
CHARLESTON

Issued: November 19, 2024

CASE NO. 24-0457-WS-19A

COOLFONT MOUNTAINSIDE ASSOCIATION, INC.
Rule 19-A application to increase water and sewer rates and charges.

PROCEDURAL ORDER

This order directs the publication of the Notice of Application to Change Rates.

BACKGROUND

On May 16, 2024, Coolfont Mountainside Association, Inc. (Coolfont) filed a 19A request to increase its rates. It also requested an emergency rate increase.

On September 13, 2024, Commission Staff issued a Final Joint Staff Memorandum, recommending certain rate increases. The Memorandum noted that Coolfont would be required to publish the rate increase.

On September 19, 2024, Coolfont filed a request for an extension of time in which to respond to the Staff-recommended rates, which was granted by Procedural Order issued September 23, 2024.

On October 17, 2024, Coolfont filed a response outlining multiple disagreements with the Staff-recommended rates, and requesting their reconsideration, stating that it is optimistic Commission Staff will work Coolfont to resolve its questions and provide adequate rates.

The same day, the presiding ALJ issued a Procedural Order directing Staff to file a response by November 1, 2024.

On November 1, 2024, Commission Staff filed a motion requesting an extension of the Staff response due date to November 15, 2024, stating that it sent a confidential settlement offer to Coolfont on October 31, 2024, and that the additional time would allow Staff and Coolfont time to come to agreed-upon rates.

On November 4, 2024, the presiding ALJ issued a Procedural Order granting the Staff extension to November 15, 2024.

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On November 12, 2024, Coolfont filed a request for an expedited decision.

On November 15, 2024, Staff filed a Second Final Joint Staff Memorandum, recommending that the Commission approve a rate increase negotiated between it and Coolfont, once it makes the appropriate filing indicating that it accepts the negotiated rates and does not want to have a hearing in this matter.

The same day, Coolfont filed a response stating that it agreed with the rates listed in the November 15, 2024 Memorandum, and did not want a hearing in the matter.

DISCUSSION

Coolfont must now provide notice of the proposed rates, pursuant to ***W.Va. CSR §150-2-8.2.7***, by mailing to customers or publishing the attached notice, and also by sending a copy of it, by certified mail, to its resale customers. ***W.Va. CSR §150-2-8.2.7*** also requires that a certificate of compliance in the form of Tariff Form No. 6-B be filed on completion. Copies of the affidavits of publication must also be filed.

ORDER

IT IS, THEREFORE, ORDERED that Coolfont Mountainside Association, Inc. provide notice of the proposed rate change to its customers, as required by ***W.Va. CSR §150-2-8.2.7,*** including causing to be mailed to customers or published a copy of the Notice of Application to Change Rates, Tariff Form No. 10, attached hereto as Appendix A, once in a qualified newspaper, published and of general circulation in the counties in which it provides services. The District shall also mail a copy of Tariff Form 10 to its resale customers by United States Certified Mail, return receipt requested. The District shall file with the Public Service Commission an affidavit of such publication and a completed Tariff Form No. 6-B **no later than December 19, 2024.**

IT IS FURTHER ORDERED that the Executive Secretary serve a copy of this Order on the West Virginia State Auditor's Office pursuant to W. Va. Code §59-3-2(e).

IT IS FURTHER ORDERED that the Executive Secretary's Office serve a copy of this order upon all parties by electronic service, if they have filed an e-service agreement with the Commission; by United States First Class Mail, if they have not filed an e-service agreement with the Commission; and upon Commission Staff by hand delivery.

Darren Olofson
Administrative Law Judge

DO:bjh
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PUBLIC SERVICE COMMISSION
OF WEST VIRGINIA
CHARLESTON

TARIFF FORM NO. 10
(Tariff Rule No. 19A)
NOTICE OF APPLICATION TO CHANGE RATES

COOLFONT MOUNTAINSIDE ASSOCIATION, INC.
CASE NO. 24-0457-WS-19A

Coolfont Mountainside Association, Inc., has filed a request with the West Virginia Public Service Commission for an increase in its water and sewer rates. The Staff of the Public Service Commission has recommended the following rate increases.

	CURRENT RATES	RECOMMENDED RATES
Sewer (monthly)		
Rate (per 1,000 gallons)	$7.60	$18.06
Minimum Charge (per quarter)	$34.20	$54.18
Flat Rate Charge (per quarter)	$34.20	$81.27
Water (monthly)		
Rate (per 1,000 gallons)	$25.62	$41.02
Minimum Charge (per quarter)	$115.29	$123.06

The Commission may adopt rates and charges for the Utility which are the same as, greater than or less than the Staff-recommended rates and charges.

Anyone desiring to protest the proposed changes must do so in writing within ten days of the date of publication of this notice. All protests should be addressed to the Executive Secretary, Public Service Commission of West Virginia, P.O. Box 812, Charleston, WV 25323. To help the Commission determine the justification for additional review and investigation, protests should be specific as to reasons that the changed rates and charges should be modified. In addition, anyone desiring a hearing in this matter must demand a hearing in the letter of protest. If no substantial protest is filed, the

Staff-recommended rates may be approved without hearing. Customers may also submit comments online at the Commission website.

COOLFONT MOUNTAINSIDE ASSOCIATION, INC.